Idaho National Laboratory

Employee Name: Hari Naicker

S-Number: 138760

INTELLECTUAL PROPERTY ASSIGNMENT AND NON-DISCLOSURE AGREEMENT

As a condition of my employment by and in consideration of my relationship with Battelle Energy Alliance, LLC ("BEA") and my receipt of the compensation now or hereafter paid to me by BEA, I agree to the following:

1. **Acknowledgement**. I acknowledge that BEA is relying on my commitment to the obligations set forth herein in employing me, hiring me, and continuing to employ or hire me. I acknowledge, however, that this Agreement does not impose on BEA any obligation to employ me or hire me for any period of time and that my employment can be terminated at will by BEA. My obligations hereunder shall be in addition to the obligations contained in any written document between me and BEA or any written employment policies or procedures promulgated by BEA.

2. **Proprietary Information.** I shall not, except as authorized in writing by BEA, at any time during or after my employment directly or indirectly disclose to any other person or entity any proprietary, confidential, private, or sensitive information of BEA, the United States Government, or others with which BEA has an obligation of confidentiality (collectively "Proprietary Information"); nor shall I use any such Proprietary Information for my personal use or advantage or make it available to others. Proprietary Information includes existing and contemplated technical information such as, compositions, formulas, products, processes, methods, systems, designs, specifications, mask works, drawings, computer software programs, testing or evaluation procedures, machines, manufacturing procedures, production techniques, research and development activities, inventions, discoveries and improvements and also existing and contemplated business, marketing, and financial information such as, business plans and methods, marketing information, cost estimates, forecasts, financial data, bid and proposal information, customer identification, and sources of supply, whether the Proprietary Information is in tangible or intangible forms and regardless of how the Proprietary Information is obtained. All information, both technical and non-technical, regarding BEA's business in whatever form, is presumed to be proprietary and confidential until it becomes public information lawfully and without breach of confidential obligation. I will protect any Proprietary Information consistent with the terms and conditions in any agreement that BEA has with other parties.

Nothing in this Agreement shall prohibit or restrict me from disclosing information as required by applicable law, regulation, or a valid order of a court or governmental authority, provided that, to the extent permitted by law, I provide BEA with prompt written notice of such requirement so that BEA may seek an appropriate protective order or other remedy.

3. **Intellectual Property**.

(A) **Prior Intellectual Property**. I hereby confirm that, except as disclosed by me on Appendix A attached hereto, there are no inventions or original works of authorship that were

made by me prior to my employment with BEA that belong to me or a previous employer and that relate to BEA's current, or reasonably foreseeable, business, services, products, research or development (collectively referred to as "Prior Intellectual Property").

(B) **License to Prior Intellectual Property.** I hereby grant BEA an irrevocable, non-exclusive, royalty-free world-wide license to any and all of my rights in and to any and all Prior Intellectual Property that relates to BEA's current, or reasonably foreseeable, business, services, products, research or development.

(C) **Assignment of Intellectual Property**. I agree that I will promptly make full written disclosure to BEA and will hold in trust for the sole right and benefit of BEA, any and all inventions, original works of authorship, developments, concepts, know-how, improvements, trademarks (including any goodwill associated therewith), domain names or trade secrets, whether or not patentable or registrable under patent, trademark, copyright or similar laws, that I may solely or jointly conceive or develop or reduce to practice or fix in a tangible medium, or cause to be conceived or developed or reduced to practice or fixed in a tangible medium during the period of my employment, including any leave periods and outside activities: (a) which are along the lines of or relate to the business, work, or investigations of BEA; (b) which result from or arise out of any work that I may do for or on behalf of BEA; (c) which result from or arise out of any Proprietary Information that may have been disclosed or otherwise made available to me as a result of duties assigned me by BEA; or (d) that are otherwise made through the use of BEA's time, facilities, or materials (collectively referred to as "BEA Intellectual Property"). I acknowledge that all BEA Intellectual Property is a "work made for hire" (to the greatest extent permitted by applicable law) and is compensated by my salary or contract unless regulated otherwise by mandatory law.

I hereby irrevocably assign, and agree to assign, to BEA, or its designee, any and all of my right, title and interest throughout the world in and to BEA Intellectual Property, including any work made for hire, whether created solely by me or jointly with others. To the extent that any of my work for BEA may not be considered a work made for hire under the law, I hereby irrevocably assign, and agree to assign, to BEA, or its designee, any and all of my right, title and interest in any such work throughout the world.

(D) **Execution of Documents and Assistance**. I agree to assist BEA, or its designee in every proper way to secure BEA's rights in BEA Intellectual Property and other intellectual property rights relating thereto in any and all countries, including the disclosure to BEA of all pertinent information and data with respect thereto, the execution of all applications, specifications, oaths, declarations, assignments and all other instruments which BEA shall deem necessary in order to apply for, obtain, maintain and transfer such rights and in order to assign and convey to BEA, its successors, assigns and nominees the sole and exclusive rights, title and interest in and to such BEA Intellectual Property, and other intellectual property rights relating thereto. I further agree that my obligation to execute or cause to be executed, when it is in my power to do so, any such instrument or papers shall continue after the termination of this Agreement and after termination of my employment. If BEA is unable because of my mental or physical incapacity or unavailability or for any other reason to secure my signature to apply for or to pursue any application for any United States or foreign patents or copyright registrations covering Intellectual Property assigned to BEA as above, then I hereby irrevocably designate and

appoint BEA and its duly authorized officers and agents as my agent and attorney in fact, to act for and in my behalf and stead to execute and file any such application and to do all other lawfully permitted acts to further the application for, prosecution, issuance, maintenance or transfer of letters patent or trademark or copyright registrations thereon with the same legal force and effect as if executed by me. I hereby waive and irrevocably quitclaim to BEA any and all claims, of any nature whatsoever, which I now or hereafter have for infringement of any and all proprietary rights assigned to BEA.

(E) **Maintenance of Records**. I agree to keep and maintain adequate and current written records of all BEA Intellectual Property developed by me (solely or jointly with others) during the term of the relationship. The records may be in the form of notes, sketches, drawings, flow charts, electronic data or recordings, and any other format including all entries in laboratory notebooks. The records, including all laboratory notebooks will be available to and remain the sole property of BEA at all times. I agree not to remove such records from BEA's place of business except as expressly permitted by BEA policy which may, from time to time, be revised at the sole discretion of BEA. Upon termination of my employment, I agree to leave all such records, documents and writings and all copies thereof with BEA.

(F) **No Misuse of Rights**. I hereby agree that to the best of my knowledge, BEA Intellectual Property created by me during the relationship will be my own original creation and that it will not knowingly infringe upon any rights of any other person or business entity. I affirm that I have not disclosed and will not disclose to BEA or use for BEA's purposes and idea, invention, discovery, improvement, trade secret, or the like which is the property of a previous employer or of any third party who has not authorized the same.

(G) **No Rights**. I understand that nothing in this Agreement is intended to grant any rights to me under any patent, trademark, copyright or other intellectual property right of BEA, nor will this Agreement grant me any rights in or to the Proprietary Information, except as expressly set forth in this Agreement.

5. **Notification to Other Parties**. In the event that I leave the employ of BEA, I hereby consent to notification by BEA to my new employer about my rights and obligations under this Agreement.

6. **Representations and Covenants**.

(A) Facilitation of Agreement. I agree to execute promptly any proper oath or verify any proper document required to carry out the terms of this Agreement upon BEA's written request to do so.

(B) Voluntary Execution. I certify and acknowledge that I have carefully read all of the provisions of this Agreement and that I understand and will fully and faithfully comply with such provisions.

7. **General Provisions**.

(A) **Governing Law**. The validity, interpretation, construction and performance of this Agreement shall be governed by the laws of the State of Idaho, without giving effect to the principles of conflict of laws.

(B) **Entire Agreement**. This Agreement and the related Appendix set forth the entire agreement and understanding between BEA and me relating to the subject matter herein and merges all prior discussions between us. No modification or amendment to this Agreement, nor any waiver of any rights under this Agreement, will be effective unless in writing signed by the parties hereto. Any subsequent change or changes in my duties, obligations, rights or compensation will not affect the validity or scope of this Agreement.

(C) **Severability**. If any provision of this Agreement or part thereof shall be held by a court or other tribunal of competent jurisdiction to be unenforceable, then such provision or part thereof shall be excised herefrom and the remaining provisions of this Agreement and parts thereof shall remain in full force and effect.

(D) **Successors and Assigns**. This Agreement will be binding upon and inure to the benefit of each party's heirs, executors, administrators, legal representatives, successors, and assigns.

(E) **Survival**. The provisions of this Agreement shall survive the termination of the relationship and the assignment of this Agreement by BEA to any successor in interest or other assignee.

(F) **Breach**. The parties agree that it is impossible to measure in money the damages that will accrue to BEA due to my breach of this Agreement and/or failure to perform any of my obligations under this Agreement. Therefore, in the event BEA institutes any action or proceeding to specifically enforce the provisions of this Agreement by injunctive or other form of equitable relief, I hereby waive the claim or defense that BEA has an adequate remedy at law or that BEA has not been or is not being irreparably harmed, and I shall not assert in any such action or proceeding the claim or defense that such remedy at law exists.

(G) **Counterparts and Digital Signatures**. This Agreement may be executed in any number of separate counterparts, all of which, when taken together, shall constitute one and the same instrument. This Agreement may also be signed digitally by one or more of the parties, and the parties agree that such digital signature shall be binding.

(H) **Advice of Counsel**. I ACKNOWLEDGE THAT, IN EXECUTING THIS AGREEMENT, I HAVE HAD THE OPPORTUNITY TO SEEK THE ADVICE OF LEGAL COUNSEL, AND I HAVE READ AND UNDERSTOOD ALL OF THE TERMS AND PROVISIONS OF THIS AGREEMENT. THIS AGREEMENT SHALL NOT BE CONSTRUED AGAINST ANY PARTY BY REASON OF THE DRAFTING OR PREPARATION HEREOF.

8. Prior Intellectual Property Disclosure

(A) The-following is a complete list of all inventions or improvements that relate to BEA's current, or reasonably foreseeable, business, services, products, research or development including, but not limited to, the subject matter of my employment by, or contractual relationship with, BEA that have been made or conceived or first reduced to practice by me alone or jointly with others or that may otherwise be owned by me prior to my engagement by BEA:

(●) None.

( ) List. (For each item, please provide the title, a brief description, whether a patent application was filed, and applicable patent serial/publication number for foreign and domestic filings)

(B) The-following is a complete list of computer programs, writings of any type, graphic or artistic works or any other tangible materials that I created or helped to create, either independently or for another employer that relate to BEA's current, or reasonably foreseeable, business, services, products, research or development including, but not limited to, the subject matter of my employment by, or contractual relationship with, BEA :

◉ None.

○ List. (For each item, please provide the title, a brief description, whether you are the owner, and any copyright registration/identification numbers):

I hereby certify that the information provided above is correct and complete and execute this Agreement on the date set forth below:

EMPLOYEE:

By: _____ Date: 06/16/2026